



PHASE 01 · UNDERWRITING REVIEW

UW Enhancement Register

Rounds 7–9 wording enhancements held for underwriting / legal sign-off

Wordings reviewed

- TMHCC 0223C baseline
- TMHCC final wording (commit 58b8340)
- Competitor support: Tysers, Yutree, Entertainment Elite, Allianz (as cited per item)

Source: TMHCC Media & Music Combined final wording (commit 58b8340) vs 0223C baseline.

Status of every item below: Not accepted — awaiting UW review.

These enhancements appear in the Full Redline under the separate tracked-change author 'UW Review Enhancement' (yellow-highlighted).

Enhancement Register — status summary

Every enhancement below is identified separately in the Full Redline (author: 'UW Review Enhancement', yellow highlight) and is NOT accepted pending sign-off. Detail cards follow.

#	Enhancement	Section	Priority risk	Status
1	Admission of Liability — claims condition (Sections 1–11)	Policy Claims Conditions (Sections 1–11)	Low	Awaiting UW review
2	Proof of Ownership and Value — new claims condition (Sections 1–11)	Policy Claims Conditions (Sections 1–11)	Low–Med	Awaiting UW review
3	Money – Premises extension (Section 8 Money)	Section 8 — Money	Low–Med	Awaiting UW review
4	Money – Touring, Festivals and Events extension (Section 8 Money)	Section 8 — Money	Medium	Awaiting UW review
5	'Employee' definition broadened (Section 13 Commercial Legal Expenses)	Section 13 — Commercial Legal Expenses (Definitions)	Low–Med	Awaiting UW review
6	'Computer System' definition aligned to Section 15 (Section 12 Media Liability)	Section 12 — Media Liability (Definitions)	Medium	Awaiting UW review
7	Representation Costs at Investigations & Inquiries (Section 12)	Section 12 — Media Liability	Low	Awaiting UW review
8	Costs for the Protection of Journalistic Sources (Section 12)	Section 12 — Media Liability	Low	Awaiting UW review
9	Criminal & Regulatory Defence Costs cross-reference + contribution (Section 12)	Section 12 — Media Liability	Low–Med	Awaiting UW review
10	Distributors & Purchasers extension (Section 12)	Section 12 — Media Liability	Medium	Awaiting UW review
11	Worldwide Territory & Jurisdiction (Optional) extension (Section 12)	Section 12 — Media Liability	HIGH (US/Can)	Awaiting UW review
12	King's Counsel determination clause (Section 12 disputes)	Section 12 — Media Liability	Low	Awaiting UW review
13	Pollution negligent-advice write-back (Section 12)	Section 12 — Media Liability (Seepage & Pollution exclusion)	Medium	Awaiting UW review
14	Presentational / labelling refinements (technical)	Section 3 (BI) + Section 15 (Cyber) + Contents	Nil–Low	Awaiting UW review

Enhancement detail cards

1. Admission of Liability — claims condition (Sections 1–11)

Field	Detail
Section	Policy Claims Conditions (Sections 1–11)
Clause / location	Conduct of Claims / Admission of Liability clause
Wording inserted / amended	The previous BLANKET condition precedent ('the Insured must not admit liability...') was replaced with an ordinary condition qualified so the Insurer may only rely on a breach to the extent it has been prejudiced.
Why it was added	Fairness / Insurance Act 2015 alignment; avoids disproportionate forfeiture of an otherwise valid claim for a technical breach.
Gap / competitor support	Market practice / ICOBS fair-treatment expectations (not a competitor copy).
Underwriting / legal risk	Low — mildly reduces the Insurer's contractual remedy; favourable to the insured.
Sign-off required	Yes — claims & underwriting to confirm the relaxation of the condition-precedent status is acceptable.
Status	Not accepted — awaiting UW review

2. Proof of Ownership and Value — new claims condition (Sections 1–11)

Field	Detail
Section	Policy Claims Conditions (Sections 1–11)
Clause / location	Inserted between 'Notification to the Police' and 'Terms of Settlement'
Wording inserted / amended	New condition requiring the Insured, on request, to produce reasonable proof of ownership and value of property the subject of a claim.
Why it was added	Claims-handling hygiene for theft / property / equipment claims; reduces disputed-value claims.
Gap / competitor support	Market norm; mirrors money/property security conditions in Tysers and Entertainment Elite.
Underwriting / legal risk	Low-medium — confirm intended as an ordinary condition (NOT a condition precedent).
Sign-off required	Yes — confirm status (ordinary condition vs CP).
Status	Not accepted — awaiting UW review

3. Money – Premises extension (Section 8 Money)

Field	Detail
Section	Section 8 — Money
Clause / location	Inserted after the 'Loss of Keys' clause (first of two new Schedule-referenced extensions)
Wording inserted / amended	Extends cover to Damage to Money belonging to/for which the Insured is responsible whilst at the Premises, up to the Schedule sub-limit; expressly does not reduce, replace or restrict existing Money cover.
Why it was added	Restructure of Money into two clean, Schedule-referenced sub-limits (Premises vs Touring/Events).
Gap / competitor support	Entertainment Elite event-money section + the 0523 'Venue' enhancement.
Underwriting / legal risk	Low-medium — Schedule sub-limit set by underwriting.
Sign-off required	Yes — underwriting to set sub-limit and confirm appetite.
Status	Not accepted — awaiting UW review

4. Money – Touring, Festivals and Events extension (Section 8 Money)

Field	Detail
Section	Section 8 — Money
Clause / location	Inserted after 'Money – Premises'
Wording inserted / amended	Covers Money in transit / temporary storage / locked safe / personal custody at any venue, festival site, box office or touring/event location, including: (a) damage to safes, containers, money belts; (b) damage to clothing, personal effects and personal Money following assault/violence; and (c) employee dishonesty discovered within 12 months. Schedule sub-limit; does not reduce existing cover.
Why it was added	Touring/festival/event Money exposure not clearly addressed in the base wording.
Gap / competitor support	Entertainment Elite Money Section (theft, safes, assault, employee dishonesty GBP 25k); 0523 wording.
Underwriting / legal risk	Medium — dishonesty and assault heads; Schedule sub-limit and conditions to be set by underwriting.
Sign-off required	Yes — underwriting to confirm heads, sub-limit and dishonesty discovery period.
Status	Not accepted — awaiting UW review

5. 'Employee' definition broadened (Section 13 Commercial Legal Expenses)

Field	Detail
Section	Section 13 — Commercial Legal Expenses (Definitions)
Clause / location	Replaces the narrow S13 'Employee' definition
Wording inserted / amended	Broadened to include labour-only / self-employed-supplying-labour, hired or borrowed staff, and voluntary helpers, work-experience / training-scheme participants, secondees, students and prospective employees being assessed.
Why it was added	Aligns the S13 employee class with the broader definitions used elsewhere and by competitors (the general, S12 and S14 definitions were already broad).
Gap / competitor support	Tysers (p9) and Yutree (p88) broad 'employee' definitions.
Underwriting / legal risk	Low-medium — widens the protected legal-expenses class.
Sign-off required	Yes — confirm acceptable widening of the S13 employee class.
Status	Not accepted — awaiting UW review

6. 'Computer System' definition aligned to Section 15 (Section 12 Media Liability)

Field	Detail
Section	Section 12 — Media Liability (Definitions)
Clause / location	Replaces the narrow S12 'Computer System' definition
Wording inserted / amended	Broad definition (computer/computing, electronic, wireless, web and cloud systems, hardware/software/firmware/data/networks) expressly stated to be consistent with the meaning of 'Computer System' in Section 15 (CyberGuard™).
Why it was added	Removes an inconsistency between S12 and the standalone cyber section; avoids coverage gaps/overlaps.
Gap / competitor support	Internal consistency with the broad S15 CyberGuard definition.
Underwriting / legal risk	Medium — broadens the S12 computer-related triggers.
Sign-off required	Yes (S12) — underwriting to confirm the wider definition is intended for Media Liability.
Status	Not accepted — awaiting UW review

7. Representation Costs at Investigations & Inquiries (Section 12)

Field	Detail
Section	Section 12 — Media Liability
Clause / location	New extension after the IP-pursuit clause
Wording inserted / amended	Up to GBP 25,000 in the aggregate, with prior written consent, for attendance/representation at an official examination, investigation or inquiry likely to give rise to a claim. Forms part of, and does not increase, the Indemnity Limit.
Why it was added	Regulators increasingly investigate content/advertising; S12 alone otherwise looked narrower.
Gap / competitor support	Tysers clause 8.15 (GBP 25,000).
Underwriting / legal risk	Low — small sub-limit; consent condition.
Sign-off required	Yes (S12) — confirm sub-limit and consent mechanics.
Status	Not accepted — awaiting UW review

8. Costs for the Protection of Journalistic Sources (Section 12)

Field	Detail
Section	Section 12 — Media Liability
Clause / location	New extension following Representation Costs
Wording inserted / amended	Up to the Schedule sub-limit, with prior written consent, for legal costs to oppose a subpoena/court order requiring disclosure of a confidential journalistic source, where counsel advises reasonable grounds to oppose. Within the Indemnity Limit.
Why it was added	Broker-sensitive cover for editorial, news and publishing clients.
Gap / competitor support	Tysers clause 8.13.
Underwriting / legal risk	Low — low-frequency; consent + counsel test.
Sign-off required	Yes (S12) — confirm sub-limit.
Status	Not accepted — awaiting UW review

9. Criminal & Regulatory Defence Costs cross-reference + contribution (Section 12)

Field	Detail
Section	Section 12 — Media Liability
Clause / location	New clause following Source-Protection costs
Wording inserted / amended	Signposts that criminal/regulatory defence may be available under S13 (Legal Expenses) and S14 (Management Liability), and adds an Insurer contribution up to the Schedule sub-limit (excess of S13/S14), excluding fines, penalties and costs after a plea/finding of guilt.
Why it was added	On a section-by-section read of S12 alone, TMHCC looked narrower than competitors that fund statutory defence.
Gap / competitor support	Tysers (statutory defence GBP 1m); Yutree (criminal-prosecution defence GBP 250k).
Underwriting / legal risk	Low-medium — largely a clarifying cross-reference; small contribution.
Sign-off required	Yes (S12) — confirm interaction with S13/S14 and sub-limit.
Status	Not accepted — awaiting UW review

10. Distributors & Purchasers extension (Section 12)

Field	Detail
Section	Section 12 — Media Liability

Clause / location	New extension after 'Indemnity to Principals'
Wording inserted / amended	Extends indemnity to purchasers/co-producers/licensees/distributors of the Insured's Media Material (only where the Insured is contractually obliged), capped at 5x the Indemnity Limit in the aggregate, subject to Insurer control of defence and notification during the period.
Why it was added	Production/distribution clients expect their distribution chain to be protected.
Gap / competitor support	Tysers clause 8.7 (up to 5x the limit).
Underwriting / legal risk	Medium — 5x aggregate exposure; control-of-defence condition essential.
Sign-off required	Yes (S12) — confirm acceptable aggregate multiple.
Status	Not accepted — awaiting UW review

11. Worldwide Territory & Jurisdiction (Optional) extension (Section 12)

Field	Detail
Section	Section 12 — Media Liability
Clause / location	New optional extension after Distributors & Purchasers
Wording inserted / amended	Schedule-operative only. Where operative, amends the Geographical Limits to anywhere in the world and the Jurisdiction to worldwide; USA/Canada actions covered only if 'USA/Canada Jurisdiction' is ADDITIONALLY stated operative. Default remains worldwide ex-US/Canada.
Why it was added	Media clients with global digital distribution can face actions outside the default jurisdiction (was Gap 2).
Gap / competitor support	Tysers PI is worldwide.
Underwriting / legal risk	HIGH if US/Canada operative — price, sub-limit and higher excess; retain ex-US/Canada as default.
Sign-off required	Yes (S12) — underwriting + confirm reinsurance treaty territory before offering US/Canada.
Status	Not accepted — awaiting UW review

12. King's Counsel determination clause (Section 12 disputes)

Field	Detail
Section	Section 12 — Media Liability
Clause / location	New clause after the S12 dispute/mediation provision
Wording inserted / amended	On a defence/settlement dispute, either party may refer the matter to a mutually-agreed King's Counsel of the English Bar (or Bar Council appointee) whose opinion binds both parties; costs allocated fairly.
Why it was added	Drafting-clarity improvement; reduces coverage friction on defence disputes.
Gap / competitor support	Yutree King's Counsel arbitration clause.
Underwriting / legal risk	Low — procedural.
Sign-off required	Yes (S12) — confirm cost-allocation wording.
Status	Not accepted — awaiting UW review

13. Pollution negligent-advice write-back (Section 12)

Field	Detail
Section	Section 12 — Media Liability (Seepage & Pollution exclusion)
Clause / location	Proviso added to the S12 Seepage & Pollution exclusion
Wording inserted / amended	The exclusion does not apply to a claim arising solely from a negligent act/error/omission in the Insured's Media Business Services (not from the Insured's own pollution), expressly NOT extending to Bodily Injury, property damage or clean-up/remediation costs; Schedule sub-limit.

Why it was added	Closes a genuine E&O gap created by the outright pollution exclusion (negligent advice/specification).
Gap / competitor support	Yutree pollution write-back for the insured's own negligence.
Underwriting / legal risk	Medium — drafting must keep BI, property damage and contamination excluded; cap tightly.
Sign-off required	Yes (S12) — careful legal drafting review essential.
Status	Not accepted — awaiting UW review

14. Presentational / labelling refinements (technical)

Field	Detail
Section	Section 3 (BI) + Section 15 (Cyber) + Contents
Clause / location	Definitions / headings
Wording inserted / amended	'Accounts Receivable' re-labelled '(Book Debts)' in S3; Section 15 standardised to 'CyberGuard™ (Cyber Liability)' in the body heading and Contents.
Why it was added	Like-for-like clarity (Allianz names 'Book Debts'); consistent cyber-section naming.
Gap / competitor support	Allianz (Book Debts head); internal consistency.
Underwriting / legal risk	Nil-low — labelling only; no change to cover intended.
Sign-off required	Confirm no cover change is implied by the relabelling.
Status	Not accepted — awaiting UW review (technical)